Vijay Singh Dogra vs Serious Fraud Investigation Office on 13 August, 2024

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
% Date of decision: 13th Aug
+ CRL.M.C. 4181/2024

VIJAY SINGH DOGRA ...
Through: Mr. Murari Tiwari, Ms. Anki
Tiwari, Mr. Rahul Kumar, Mr
Abhishek Tiwari, Ms. Mrinal
Mr. Hemant Shah, Mr. Shivam
Khora, Mr. Anuj Gupta, Mr.
Shah & Mr. Vishal Mann, Adv

versus

SERIOUS FRAUD INVESTIGATION OFFICE .....Resp
Through: Mr. Chetan Sharma, ASG with Mr.
Anurag Ahluwalia, CGSC, Mr.
Pankaj Mohan, Sr. Prosecutor, M
Shriram Tiwary, Govt. Pleader,
Amit Gupta, Mr. R.V. Prabhat, M
Vinay Yadav, Mr. Saruabh Triapt
Mr. Shubham Sharma,
Vikramaditya Singh, Mr. Abhay
Singh, Mr. Arjun Aggarwal, Mr.
Akshay Kumar Singh, Ms. Parul
Chutani, Mr. Lakshay Singh & Mr
A.S. Muhania, Advocates with Mr
Avanish Saini, Asstt. Director/

CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
J U D G M E N T (oral)

CRL.M.A. 23673/2024 (under Section 482 of Code of Criminal Procedure, 1973 filed by the petitioner for interim stay in Crl.M.C. No. 4181/2024 and to permit the applicant to travel abroad from 16.08.2024 to 05.09.2024)

1. The Application under Section 482 of the Code of Criminal Procedure (hereinafter referred to as 'Cr.PC, 1976') has been filed on behalf of the petitioner seeking interim stay of the LOC and for permission to travel abroad from 16.08.2024 to 05.09.2024.

2. The petitioner has filed the present Application for seeking permission to travel to New York and Dubai, for assisting his children in their higher education and had proposed a travel w.e.f. 25.05.2024 to 17.06.2024. However, on account of delay in consideration of the Application, the petitioner has been constrained to change the dates of his travel w.e.f. 16.08.2024 to 05.09.2024.

3. It is explained that the son of the applicant, is seeking admission in New York Film Academy, New York, which has already been delayed and the presence of the applicant is indispensable for securing the admission. The daughter of the applicant, is studying in Dubai and applicant intends to meet her there. The continuation of the restrictions on the applicant of not travelling abroad, certainly amounts to an abuse of the process of law. The directions in the impugned Order, places unreasonable restrictions on the Fundamental rights of the petitioner guaranteed under Article 21 of the Constitution of India, which includes the right to travel abroad.

4. The applicant has been co-operating in the investigation and has not shown any intention to flee from justice. The imposition of travel restrictions without any concrete evidence of flight risk, is a disproportionate measure that affects the applicant's personal and professional life. The applicant undertakes to submit a copy of the details of the travel itinerary. The balance of convenience lies in favour of the petitioner. A prayer is, therefore, made that he may be permitted to travel abroad from 16.08.2024 to 05.09.2024.

5. The Status Report has been filed on behalf of the respondent. Let the same be taken on record. It is submitted in the Status Report that the permission to travel abroad has been denied vide detailed Order dated 12.02.2024, passed by the learned ASJ-03/Special Judge, Dwarka Court and the present Application is without merit. The multiple Petitions and Applications seeking similar relief i.e. permission to travel abroad, filed before the Special Court as well as this Court, have been disallowed time and again.

6. The petitioner, is Director in eight Group Companies. The material placed on record explained the flow of funds and the close connection that was shared between Sahara and the eight corporate entities in which the applicant was a Director. Even though, these eight companies may not be facing an ongoing investigation but there seems to be a web of financial transactions between these corporate entities and the principal Company, which is being investigated by the SFIO.

7. The material was placed before the learned Special Judge, in sealed cover. The petitioner evidently was a Director in at least three overseas corporate entities, which too shared close financial dealings with Sahara Housing Investment Corporation Limited. The material constitutes part of an ongoing investigation and any disclosures made at this stage, would jeopardise the enquiry and thus, the same could not have been recorded in the Order. The learned Special Judge, after considering the material in the sealed cover, has observed that the petitioner has not come forward with clean hands and has clearly not been candid in his disclosures. Further, the grant of permission at this stage, was concluded to be detrimental to the economic interest of the country and ongoing investigation.

8. It is submitted that cogent reasons have been recorded by the learned Special Judge while denying the permission to the petitioner, to travel abroad. The respondents have contended that from the impugned Order of the learned Special Judge, dated 12.02.2024, it is evident that a balance has been struck between the rights of an individual and the larger interest of the country. The reasons given were also not found to be in an urgent category.

9. It was further stated that the petitioner is a close associate of late Subrata Sahara Roy and has been associated with Sahara Group since 1993 and was associated with Sahara Financial Corporation Limited as Executive Director Worker. As per the Ministry of Corporate Affairs, the petitioner is Director in nine companies, out of which eight companies have relationship with Sahara Group wherein the funds have been diverted/siphoned from/to the Sahara Group, during the period of alleged fraud. The Incorporation documents of some of the Foreign Companies such as Aamby Valley (U.K.) Limited, Sahara Grovenor House Hospitality Limited and Reeves Lease Limited also reflect that the present applicant is one of its Director. The petitioner has been asked to provide documents on multiple occasions, which he has failed to do thereby hampering the progress of the investigation. It is submitted that the petitioner is a high flight risk and it is highly probable that he may not return to India, once the LOC is suspended, as prayed for. He has sufficient resources to move and survive in any Foreign Country. The investigations are still under progress and are at crucial state for which the presence of the petitioner, is required for conclusive outcome. If he is permitted to travel abroad, it would derail the ongoing investigation. He has admitted that he has family ties outside India and was a frequent traveller. The LOC are backed by sufficient administrative as well as legal Authority. Moreover, the LOC issued by the SFIO, are being regularly monitored. The permission to travel abroad, has been seriously contested.

10. Learned counsel on behalf of the petitioner, has argued that aside from the allegations of the eight Companies in which the petitioner is Director, having close association with the Sahara Group, there is no investigation being conducted against its Companies and the allegations are merely in the realm of alleged investigations, which are on going since 2018, which has not seen any conclusion till date. The petitioner had been examined twice, once on 14.06.2022 and the second is 06.09.2022 and has not been examined thereafter. The claim of the respondent that he has not been co-operative, is completely defeated from this very fact. There is no question of the petitioner being non-cooperative when he has not been asked to join the investigation, for the last two years. The petitioner has his mother and the family are permanently residing in India and his business interests are also in India. There is no chance of him fleeing the country or of not honouring the terms of permission to travel abroad.

11. Learned counsel for the petitioner, has also placed reliance on P. Chidambaram vs. CBI, (2020) 4 SCC (Crl) 528 wherein it has been observed that the 'flight risk' of economic offenders should be looked at as a national phenomenon and be dealt with in that manner. Merely because certain other offenders have flown out of the country, cannot be taken as a straitjacket formula to deny bail to the one who approaches the Courts. Reliance has also been placed on Brij Bhushan Kathuria vs. Union of India and Others, 2021 SCC OnLine Del 2587 wherein refence was made to the Judgment of Sumer Singh Salkan vs. Asst. Director W.P.(Crl.) 1315/2005, decided on 11.08.2010 wherein similar facts as in hand were considered and it was observed that until and unless there is an FIR lodged or

a criminal case which is pending, an LOC cannot be opened, and the operation of the LOC was temporarily suspended to permit the petitioner, to travel abroad.

12. Submissions heard.

13. The merits of the opening of the LOC against the petitioner, is a subject matter of challenge in the main Petition, which shall be considered thereunder. By way of the present Application, the permission has been sought to travel to New York and Dubai from 16.08.2024 to 05.09.2024, on the ground that the petitioner intends to meet his daughter in Dubai and also to facilitate the admission of his son in New York.

14. Insofar as meeting the son and daughter are concerned, there is no restriction on the children to travel to India, to meet the parents. For this purpose, there is no need for the petitioner, to travel to Dubai.

15. Insofar as the admission of the son in the New York Film Academy, is concerned, aside from claiming that his presence is indispensable for the purpose of admission, the petitioner has not been able to give any cogent explanation or reasons for the same.

16. The learned Special Judge, has rightly observed that no cogent reasons have been given by the petitioner, for travelling abroad. The Judgments which have been relied upon by the petitioner, are of little assistance and need not be considered at this stage, for the simple reason that the purpose for travel itself has not been justified.

17. The Application, therefore, has no merit and is hereby dismissed and disposed of accordingly.

(NEENA BANSAL KRISHNA) JUDGE AUGUST 13, 2024/RS